

Court No. - 42

Case :- WRIT - C No. - 11525 of 2023

Petitioner :- Kamlesh Tiwari

Respondent :- Executive Engineer Electricity

Counsel for Petitioner :- Deepak Kumar Pandey

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Learned counsel appearing for the respondent-corporation to seek instructions in the matter.

List on 17.04.2023, as fresh.

Order Date :- 7.4.2023

I.A.Siddiqui

Court No. - 42

Case :- WRIT - C No. - 11525 of 2023

Petitioner :- Kamlesh Tiwari

Respondent :- Executive Engineer Electricity

Counsel for Petitioner :- Deepak Kumar Pandey

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

On request, list on **21.04.2023**, as fresh to enable the learned counsel for the respondent to seek instructions in the matter.

Order Date :- 17.4.2023

Manoj

Court No. - 42

Case :- WRIT - C No. - 11525 of 2023

Petitioner :- Kamlesh Tiwari

Respondent :- Executive Engineer Electricity

Counsel for Petitioner :- Deepak Kumar Pandey

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Despite several opportunity, learned counsel for the respondent is unable to assist the court.

Accordingly, the respondent Executive Engineer, Electricity Urban Distribution Division, Purvanchal Vidyut Vitran Nigam Ltd., Karailabagh, Kareli, Allahabad shall appear in person before the Court along with record.

List on **24.04.2023**, as fresh.

Order Date :- 21.4.2023

Manoj

Court No. - 42

Case :- WRIT - C No. - 11525 of 2023

Petitioner :- Kamlesh Tiwari

Respondent :- Executive Engineer Electricity

Counsel for Petitioner :- Deepak Kumar Pandey

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Put up tomorrow i.e. 25.04.2023, in the additional cause list.

Order Date :- 24.4.2023

Jitendra

Court No. - 42

Case :- WRIT - C No. - 11525 of 2023

Petitioner :- Kamlesh Tiwari

Respondent :- Executive Engineer Electricity

Counsel for Petitioner :- Deepak Kumar Pandey

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Petitioner is a consumer of electricity and approached this court seeking quashing the electricity bill-cum-demand notice dated 26 December 2022 issued by the respondent-Purvanchal Vidyut Vitran Nigam Ltd., Karailabagh, Kareli, Allahabad.

The respondent-Executive Engineer is present in the Court along with the record to assist the Court. It is informed that the defective Metre of Connection No. 6531595000 for domestic use, in the name of the mother of the petitioner Smt. Rajkanya Devi, having sanctioned load of 2 KW, was removed and changed on 27 June 2018. The petitioner appeared and deposited Rs. 1,20,000/- towards the outstanding dues on 15 March 2021. It appears, thereafter, petitioner did not deposit the electricity dues on the plea that the electricity bills was not issued. The electricity connection, consequently, came to be disconnected permanently on 19 December 2022. Since then, petitioner's premises is without electricity for not payment of outstanding dues.

On specific query, learned counsel for respondent informs that it is not a case of theft of electricity. In the circumstances, respondent has computed the outstanding revised electricity dues at Rs. 1,80,358/- and late payment surcharge at Rs.3,55,007/-. Earlier it was at over Rs. 8 lakhs.

Learned counsel for the petitioner, on being confronted with the outstanding dues including surcharge, submits that he is prepared to deposit the electricity dues in three installments. However, he submits that in view of clause 6.5 U.P. Electricity Supply Code, 2005, surcharge is not admissible, in case, the bill is revised.

Learned counsel appearing for respondent on being confronted with the provision admits that a revised bill has been raised with regard to the outstanding dues along with late payment / surcharge.

In the circumstances, the petitioner undertakes to deposit the electricity dues. However, the late payment surcharge is not chargeable in view of clause 6.5 of the Code. The same shall not be charged from the petitioner.

Having due regard to the facts and circumstances of the case, the writ petition is disposed of, on consent, by passing the following orders.

1. Petitioner shall make an application in the prescribed form for a new connection.
2. Petitioner shall deposit Rs. 60,000/- within 10 days from today towards part payment of outstanding dues.
3. The balance shall be deposited in two equal installments, first, on or before 10 July 2022 and the final amount shall be paid on or before 11 September 2022.
4. Petitioner shall pay the electricity dues on month to month basis as per the bill generated by the respondent upon deposit of the first installment.

In the event, petitioner defaults, it will be open for the respondent to recover the entire amount from the petitioner in accordance with law.

Order Date :- 25.4.2023

Akram